

THIS AGREEMENT IS A LEGALLY BINDING CONTRACT. BY SIGNING BELOW, THE PARTIES ACKNOWLEDGE THAT THEY HAVE READ, UNDERSTOOD, AND AGREED TO ALL TERMS AND CONDITIONS, AND THAT THEY ENTER INTO THIS AGREEMENT VOLUNTARILY AND WITH FULL LEGAL CAPACITY.

Donation Agreement

BETWEEN [DONOR NAME] (hereinafter referred to as “***Donor***”), whose address is [ADDRESS OF DONOR] and [RECIPIENT NAME] (hereinafter referred to as “***Recipient***”), whose address is [ADDRESS OF RECIPIENT].

The ***Donor*** and ***Recipient*** may be referred to individually as a “*Party*” and collectively as the “*Parties*.”

1 Donation

1.1 Description of Donation

The ***Donor*** hereby agrees to make a voluntary and irrevocable donation to the ***Recipient*** (the “*Donation*”) consisting of the following:

☐ **Monetary Donation:**

A sum of 1.000.000 € payable in one lump sum.

☐ **Non-Monetary Donation (Property or Goods):**

A detailed description of the donated property, goods, or assets, including quantity, condition, and identifying information:

Item	Description	Quantity	Condition
Item 1	XX	XX	XX
Item 2	XX	XX	XX
Item 3	XX	XX	XX

1.2 Method and Timing of Transfer

The *Donation* shall be transferred to the Recipient on or before [MM/DD/YYYY] by the following method(s):

- ☐ **Cash**
- ☐ **Bank Transfer**
- ☐ **Check**
- ☐ **Physical delivery**
- ☐ **Other**

The *Donation* shall be deemed complete upon receipt by the ***Recipient*** or, in the case of property, upon transfer of ownership or control, as applicable.

1.3 Valuation of Non-Monetary Donations

For non-monetary donations:

- The ***Donor*** acknowledges that any stated value is provided for reference or internal purposes only.
- The ***Recipient*** makes no representation or warranty regarding the fair market value of the donated property.
- Any valuation for tax purposes shall be the sole responsibility of the ***Donor***, unless otherwise required by law.

1.4 Condition of Donated Property

Unless otherwise expressly stated in writing, all non-monetary donations are made “*as is*” and “*where is*,” without any warranties, express or implied, including warranties of condition, fitness for a particular purpose, or merchantability.

1.5 Costs and Expenses

Unless otherwise agreed in writing:

- The ***Donor*** shall be responsible for all costs associated with delivering or transferring the Donation to the ***Recipient***.
- The ***Recipient*** shall be responsible for costs incurred after receipt, including storage, maintenance, or use.

1.6 No Reversionary Interest

Except as expressly provided in this Agreement, the ***Donor*** retains no ownership, control, or reversionary interest in the Donation after it has been transferred to the ***Recipient***.

1.7 Acknowledgment of Receipt

The ***Recipient*** agrees to acknowledge receipt of the *Donation* in writing upon request, specifying the date and description of the *Donation*, but not assigning or confirming a monetary value unless required by law.

2 Purpose of Donation

The *Donation* is intended to be used for the following purpose(s):

[PURPOSE DESCRIPTION E.G. EMERGENCY EXPENSES, PROPERTY REPAIR ETC. EXAMPLES of acceptable donation purposes include, but are not limited to, personal living expenses,

medical or healthcare costs, educational or tuition expenses, home repairs or maintenance, travel or relocation costs, debt consolidation, payment of taxes or legal fees, emergency expenses, business working capital, purchase of equipment or inventory, startup or expansion costs, and other lawful personal or business-related expenses.]

The ***Recipient*** agrees to use the *Donation* only for the stated purpose and not for any illegal or prohibited activity.

The ***Donor*** makes no representation or warranty regarding the suitability of the *Donation* for the stated purpose.

3 No Expectation of Goods or Services

The ***Donor*** acknowledges that no goods, services, or other consideration have been provided or promised in exchange for this *Donation*, except as expressly stated in this Agreement.

4 Tax Matters

4.1 Tax-Exempt Status of Recipient

The ***Recipient*** represents that it is ELIGIBLE / NOT ELIGIBLE to receive tax-deductible donations under applicable law.

The ***Recipient*** makes no representation beyond its stated status regarding the tax treatment of the *Donation* to the ***Donor***.

4.2 Donor Responsibility for Tax Treatment

The ***Donor*** acknowledges and agrees that:

- The determination of whether the *Donation* is tax-deductible, in whole or in part, is the sole responsibility of the ***Donor***.
- The ***Donor*** has been advised to consult with a tax advisor regarding the tax consequences of this *Donation*.
- No oral or written statements by the Recipient shall be construed as tax, legal, or financial advice.

4.3 Compliance With Tax Reporting Obligations

Each Party agrees to comply with all applicable tax reporting, filing, and recordkeeping requirements arising from this Agreement, including but not limited to:

- Issuance of ***Donor*** acknowledgment letters;

- Filing of any required informational returns or disclosures;
- Retention of records as required by law.

4.4 No Guarantee of Tax Benefit

The ***Donor*** understands and agrees that:

- The ***Recipient*** does not guarantee any specific tax benefit, deduction, credit, or exemption as a result of the *Donation*.
- Any adverse tax consequences arising from the *Donation* shall not give rise to any claim against the ***Recipient***.

5 Termination and Return of Donation

5.1 Termination

This Agreement may terminate upon the earliest of the following events:

- Completion of the purpose for which the *Donation* was made;
- Mutual written agreement of the Parties; or
- Default or breach by either Party as set forth in this Agreement that remains uncured after written notice.

Termination of the Agreement shall not relieve the Parties of obligations accrued prior to termination.

5.2 Conditions for Return of Donation

In the event the *Donation* cannot be used for the intended purpose, or if other conditions arise as specified below, the *Donation*, or any portion thereof, may be returned to the ***Donor***:

- **Restricted Donations:** If the *Donation* is restricted to a specific purpose and the ***Recipient*** is unable to apply it to that purpose due to legal, regulatory, or operational reasons.
- **Material Misuse:** If the *Donation* is misapplied in a manner contrary to the terms of this Agreement.

Any return of *Donation* shall comply with applicable laws and regulations regarding charitable contributions, including restrictions on tax-deductible contributions.

5.3 Procedure for Return

- The ***Recipient*** shall notify the ***Donor*** in writing if the *Donation* cannot be used as intended.
- The Parties shall agree in good faith on the amount, timing, and method of returning the *Donation*.
- Return of non-monetary *Donation* shall include transfer of ownership and any related documentation, with the property returned in substantially the same condition as received, ordinary wear and tear excepted.
- Any costs associated with returning the *Donation* shall be borne by the ***Recipient***.

5.4 No Obligation Beyond Return

Upon return of the *Donation* in accordance with this Agreement:

- Neither Party shall have further obligations regarding the *Donation*, except for any accrued responsibilities prior to termination.
- The ***Donor*** shall have no claim for additional damages, interest, or compensation beyond the returned value of the *Donation*.

6 Representations and Warranties

Each Party represents that:

- It has the authority to enter into this Agreement.
- Execution of this Agreement does not violate any other agreement or obligation.

7 Publicity

7.1 Public Acknowledgment of Donation

The ***Recipient*** may publicly acknowledge the *Donation*, subject to the terms of this Agreement. Such acknowledgment may include:

- The ***Donor***'s name, logo, or likeness;
- The amount or description of the *Donation*;
- The purpose or use of the *Donation*; and
- Any associated events, programs, or publications.

7.2 Consent Requirement

Unless otherwise agreed in writing, the ***Recipient*** shall not use the ***Donor***'s name, logo, or likeness in any public announcement, marketing materials, social media posts, press releases, or promotional activities without prior written consent from the ***Donor***.

7.3 Scope of Publicity

Any publicity regarding the *Donation* shall comply with the following:

- Accurately represent the *Donation* and its purpose;
- Respect any restrictions on the use of the *Donation* (e.g., restricted funds or designated purposes);
- Avoid misleading statements, exaggerations, or claims regarding the ***Donor*** or the *Donation*.

7.4 Event and Media

If the *Donation* is recognized at an event or media appearance:

- Both Parties shall mutually agree on the ***Donor***'s role or mention;
- The ***Donor***'s participation shall be voluntary;
- The ***Recipient*** shall obtain prior written approval for any recordings, photographs, or media quotes using the ***Donor***'s name or likeness.

7.5 Privacy and Confidentiality

- Nothing in this Agreement shall obligate the ***Recipient*** to disclose the *Donation* publicly
- If the ***Donor*** desires confidentiality, the ***Recipient*** shall respect the request and refrain from any public acknowledgment or disclosure.

7.6 No Endorsement

Publicity of the *Donation* shall not imply any endorsement or sponsorship of the Donor by the ***Recipient***, unless expressly agreed in writing.

8 Entire Agreement

This document represents the entire agreement between the Parties regarding the *Donation*, supersedes all prior discussions or understandings and may only be modified in writing and signed by both parties.

(Signature page follows)

IN WITNESS WHEREOF, the ***Donor*** and ***Recipient*** have duly executed this Agreement on the date set forth below.

DONOR

Name: [DONOR NAME]

Address: [ADDRESS OF DONOR]

Phone: [DONOR PHONE]

Email: [EMAIL OF DONOR]

RECIPIENT

Name: [RECIPIENT NAME]

Address: [ADDRESS OF RECIPIENT]

Phone: [RECIPIENT PHONE]

Email: [EMAIL OF RECIPIENT]